

26STLC04879 26STLC04879

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-09-21

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Case Number: 26STLC04879 Hearing Date: September 21, 2026 Dept: 26

TENTATIVE RULING:

Defendant Andy Ramiro Contreras' Motion
to Quash Service of Summons is granted.

Order to Show Cause Re: Failure to Serve Defendant with
Summons and Complaint is scheduled for 10/19/2026 at 8:30 am in Department 26
at the Spring Street Courthouse.

Analysis:

On July 29, 2026, Plaintiff Allstate
Insurance Company ("Plaintiff") filed the Complaint
in this action against Defendant Andy Ramiro Contreras ("Defendant"). Plaintiff filed Proof of Service by Substituted Service
on August 14, 2026. Defendant, in propria persona, filed and served the instant
Motion to Quash Service of Summons on August 21, 2026. No opposition has been
filed to date.

Discussion

Defendant brings the Motion to Quash pursuant to
Code of Civil Procedure section 418.10, subdivision (a)(1), which states in
relevant part: "A
defendant, on or before the last day of his or her time to plead or within any
further time that the court may for good cause allow, may serve and file a
notice of motion for one or more of the following purposes: To quash service of
summons on the ground of lack of jurisdiction of the court over him or her." (Code Civ. Proc., § 418.10, subd. (a)(1),
emphasis added.)

A defendant has 30 days after the service of the summons to file a responsive pleading. (Code Civ. Proc., § 412.20, subd. (a)(3).) The Motion was timely filed less than a week after the date of purported service, August 17, 2026.

Substantively,

“[w]hen a defendant challenges the court’s personal jurisdiction on the ground of improper service of process ‘the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.’” (Summers v. McClanahan

(2006)

140 Cal.App.4th 403, 413.) A proof of service containing a declaration from a registered process server invokes a rebuttable presumption affecting the burden of producing evidence, of the facts stated in the return. (Cal. Evid. Code, § 647; see American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390.)

Defendant

challenges the Proof of Service by Substituted Service filed by Plaintiff on August 14, 2026, which purports to demonstrate service at 8151 Broadleaf Ave., Panorama City, California. (Proof of Service, filed 08/14/26, ¶4.) The papers were purportedly delivered to “Stephanie Contreras - Co-occupant,” on August 7, 2026, and then mailed to that address on the same day. (Id. at ¶5.) The proof of service is signed by a registered process server. (Id. at ¶7.)

Defendant

presents rebuttal evidence through his declaration, which attests that he moved from 8151 Broadleaf Ave. in 2020, and at the time of service lived at 1846 Fitzgerald Rd., Simi Valley, California. (Motion, Contreras Decl., ¶¶3, 6-8 and Exhs. B-C.) This evidence sufficiently disputes the contention in the proof of service that Defendant was served at his residence. The burden now shifts to Plaintiff to demonstrate that the facts in the proof of service—specifically that 8151 Broadleaf Ave. was Defendant’s residence in August 2026—are true. Plaintiff, however, has filed no opposition to the instant Motion to demonstrate that Defendant was served at his residence.

Therefore,

the Court finds Plaintiff has failed to demonstrate service of the Summons and Complaint upon Defendant in accordance with the statutory

requirements. The Court quashes service of the Summons upon Defendant and sets an Order to Show Cause regarding Plaintiff's failure to serve Defendant with the Summons and Complaint.

Conclusion

Defendant Andy Ramiro Contreras' Motion
to Quash Service of Summons is granted.

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Summons and Complaint is scheduled for 10/19/2026 at 8:30 am in Department 26
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Moving party to give notice.